

Immigration & Asylum

The Two-Stage Residency System - §6.1, §6.2

STAGE 1

State Sponsorship

A State sponsors. It keeps discretion over whom - but sponsorship criteria may not violate §1.6 equality. Denials on discriminatory grounds are challengeable.

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STAGE 2

Federal Certification

Federal categories set by statute. Denials must state the exact ground in writing and are judicially reviewable - including in-camera review of any national-security assessment.

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ISSUANCE

Ministerial Credential

Clear both stages and the Legat Consul must issue credentials. Interference is constitutionally prohibited - no executive discretion at the finish line.

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REMOVAL

Federal, Law-Based Only

Only the federal government removes, only for statutory violations. Detention without statutory basis is unlawful - habeas applies. Counsel appointed if unaffordable.

The Separate Asylum Track - §6.3

Inhabitant from the date of filing §1.21 · Own Constitutional Track

Asylum bypasses the dual gate entirely - no State can extinguish a claim by refusing to sponsor. From filing, the claimant holds full Article I protection and social-state access; claims are decided before any removal. Manner of entry is irrelevant, and no penalty may attach to irregular entry while a claim is pending or granted. Claims are determined through an independent federal adjudicative process established by law, institutionally separate from immigration enforcement, removal, foreign affairs, and national-security operations. Unaccompanied minors are Inhabitants from first contact, get a federal guardian within 72 hours, and may never be held in a facility not built for children.

Doors Nailed Shut - §6.1, §6.3, §6.3.a

No Ideological Screening

At no stage, ever.

No Nationality Quotas

Prohibited at every stage.

No Indefinite Stateless Detention

Constitutionally barred, always.

No §1.6 Discrimination in Tax or Sponsorship

Equality reaches into both.

Numbers Worth Remembering

2

gates to residency - State sponsorship + federal certification. Asylum uses neither.

72

hours to appoint a federal guardian for an unaccompanied minor (§6.3).

90

days - first mandatory judicial review of any unresolvable-case detention (§6.3.a).

180

days - the recurring review interval thereafter; never over 5 years without annual review.